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Case Number: 24PSCV01221 Hearing Date: August 18, 2026 Dept: G

Plaintiffs/Cross-Defendants Dynatrans, Inc. and Shaoyue Li and Cross-Defendant/Proposed-Plaintiff Jintao Wang's Motion for Leave to File Second Amended Complaint

Respondent: NO OPPOSITION (Stipulation by parties)

TENTATIVE RULING

Plaintiffs/Cross-Defendants Dynatrans, Inc. and Shaoyue Li and Cross-Defendant/Proposed-Plaintiff Jintao Wang's Motion for Leave to File Second Amended Complaint is GRANTED.

Plaintiffs/Cross-Defendants Dynatrans, Inc. and Shaoyue Li and Cross-Defendant/Proposed-Plaintiff Jintao Wang are ORDERED to FILE SEPARATELY the proposed SECOND AMENDED COMPLAINT.

BACKGROUND

This is an action for fraud and conversion. In 2017, plaintiff/cross-defendant Dynatrans, Inc. (Dynatrans) allegedly hired defendant/cross-complainant Yuning Su (Su). From 2022 to 2023, Su allegedly mishandled and embezzled Dynatrans's funds. After Su quit in November 2023, Su allegedly attempted to steal Dynatrans's business for defendant Plus & Beyond Express, LLC (P&B).

On April 16, 2024, Dynatrans and Shaoyue Li (Li) filed the Complaint against Su and P&B (collectively, Defendants). On October 14, 2024, Dynatrans and Li (collectively, Original Plaintiffs) filed the operative Amended Complaint, alleging causes of action for (1) actual interference with contractual relations, (2) intentional interference with prospective business advantage, (3) negligent interference with prospective economic relations, (4) conversion, (5) Penal Code section 496, (6) breach of the duty of loyalty under Labor Code sections 2860 and 2863, (7) fraud by intentional misrepresentation, (8) fraud by concealment, (9) fraud by false promise, (10) negligent misrepresentation, and (11) cancellation of deed.

On March 4, 2025, Su filed the Cross-Complaint against Original Plaintiffs and cross-defendant/proposed-plaintiff Jintao Wang (Wang). On July 30, 2026, Su filed the operative Amended Cross-Complaint, alleging causes of action for (1) defamation, (2) partition of real property, (3) unfair competition under Business and Professions Code section 17200, and (4) breach of contract.

On July 20, 2026, Original Plaintiffs and Wang (collectively, Plaintiffs) filed this motion for leave to file a second amended complaint. On August 14, 2026, the parties filed a stipulation to permit the filing of the proposed Second Amended Complaint.

The motion is set for hearing on August 18, 2026.

ANALYSIS

Plaintiffs move to file a proposed Second Amended Complaint. For the following reasons, the motion is GRANTED.

Legal Standard

“A court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading.” (Code Civ. Proc., § 473, subd. (a)(1).) The court’s discretion will usually be exercised liberally to permit amendments of the pleadings. (*Nestle v. City of Santa Monica* (1972) 6 Cal.3d 920, 939.) “A motion to amend a pleading before trial must . . . [i]nclude a copy of the proposed . . . amended pleading, which must be serially numbered to differentiate it; [s]tate what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and [s]tate what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.” (Cal. Rules of Court, rule 3.1324(a).) The motion must include a declaration that specifies the amendment’s effect, why it is necessary and proper, when the facts supporting the amended allegations were discovered, and why the request was not made earlier. (Cal. Rules of Court, rule 3.1324(b).)

Nevertheless, even where a moving party complies with the requirements of Rule 3.1324 and such proposed amendment is proper, leave to amend is not an absolute right. (See *In re Marriage of Liss* (1992) 10 Cal.App.4th 1426, 1429, noting, “Of course, a trial court also has discretion to deny amendments to pleadings if amendment would not be in furtherance of justice.”) A court may properly deny amendment based on several factors, including the bad faith conduct of the moving party, the belated presentation of the amendment, or the futility of the amendment. (See *Leader v. Health Industries of America, Inc.* (2001) 89 Cal.App.4th 603, 613; see also *Jenkins v. JP Morgan Chase Bank, Nat. Assn.* (2013) 216 Cal.App.4th 497, 535, suggesting that the court deny leave to amend based on futility where the facts are not in dispute and no liability exists under substantive law; see, e.g., *Hirsa v. Super. Ct.* (1981) 118 Cal.App.3d 486, 490, holding that the court may deny leave to amend if the moving party needlessly delayed, which prejudiced the opposing party.) Further, leave to amend must be denied where prejudice is shown to the adverse party. (*Miles v. City of Los Angeles* (2020) 56 Cal.App.5th 728, 739.) Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, or added costs of preparation, including the completion of additional discovery. (*Solit v. Tokai Bank, Ltd. N.Y. Branch* (1999) 68 Cal.App.4th 1435, 1448; see also *Miles*, *supra*, at 739.)

Discussion

As a preliminary matter, the court must determine whether the motion complies with the requirements of Rule 3.1324. As stated above, the California Rules of Court require the moving plaintiff to identify the proposed changes to the pleading, explain why such changes are necessary and proper, and further explain why the changes were not made sooner. (Cal. Rules of Court, Rule 3.1324, subds. (a)–(b).)

Plaintiffs provide a redlined copy of the proposed Second Amended Complaint. (See Mot., Exh. A.) Plaintiffs explain that the proposed changes add two alternative causes of action based on the same facts previously alleged and add Wang as a plaintiff. (See Mot., p. 3; see also Mot., Oh Decl., ¶¶ 7–8.) Plaintiffs did not seek amendment sooner because their current counsel did not substitute into this case and review the previous pleadings until April 2026. (See Mot., Oh Decl., ¶¶ 2, 9.) Thus, Plaintiffs’ motion complies with Rule 3.1324, and the court may permit them to file the proposed Second Amended Complaint, unless amendment is not in the furtherance of justice.

Further, Defendants stipulate to the filing of the proposed Second Amended Complaint. There is no indication of bad faith, belated presentation, futility, or prejudice. Thus, the court finds no reason to deny amendment.

Accordingly, the court GRANTS the motion for leave to file an amended complaint.

CONCLUSION

For these reasons, the motion for leave to file second amended complaint is GRANTED.

Plaintiffs/Cross-Defendants Dynatrans, Inc. and Shaoyue Li and Cross-Defendant/Proposed-Plaintiff Jintao Wang are ORDERED to FILE SEPARATELY the proposed SECOND AMENDED COMPLAINT.